



State of Wisconsin
2025 - 2026 LEGISLATURE

LRB-6489/1

KP:cdc

2025 SENATE BILL 1083

February 27, 2026 - Introduced by Senators CARPENTER, LARSON, RATCLIFF, ROYS and WANGGAARD, cosponsored by Representatives BILLINGS, SHEEHAN, ARNEY, EMERSON, JOERS, SINICKI and SUBECK. Referred to Committee on Government Operations, Labor and Economic Development.

1 **AN ACT to repeal and recreate** 101.123 (1) (h); **to create** 101.123 (1) (ah) of
2 the statutes; **relating to:** applying the indoor smoking ban to electronic
3 delivery devices and marijuana.

Analysis by the Legislative Reference Bureau

This bill revises the definition of “smoking” for purposes of the general prohibition under current law against smoking in indoor locations. The bill defines “smoking” as inhaling, exhaling, burning, or carrying any lighted or heated cigar, cigarette, pipe, or any other lighted or heated product containing, made, or derived from nicotine, tobacco, cannabis, hemp, or another substance, whether natural or synthetic, that is intended for inhalation. Current law defines “smoking” as burning, holding, inhaling, or exhaling smoke from any of the following tobacco-containing items: a lighted cigar, cigarette, or pipe or any other lighted smoking equipment.

In addition, the bill specifies that “smoking” includes carrying or using an activated “electronic delivery device.” The bill defines “electronic delivery device” as any device that can be used to deliver an aerosolized or vaporized liquid or other substance for inhalation, regardless of whether the liquid or other substance contains nicotine, including an e-cigarette, e-cigar, e-pipe, vape pen, or e-hookah.

SENATE BILL 1083**SECTION 1**

The people of the state of Wisconsin, represented in senate and assembly, do enact as follows:

SECTION 1. 101.123 (1) (ah) of the statutes is created to read:

101.123 (1) (ah) “Electronic delivery device” means a device that may be used to deliver any aerosolized or vaporized liquid or other substance for inhalation, regardless of whether the liquid or other substance contains nicotine, including an e-cigarette, e-cigar, e-pipe, vape pen, or e-hookah. “Electronic delivery device” does not include drugs, devices, or combination products authorized for sale by the U.S. food and drug administration, as those terms are defined in the Federal Food, Drug, and Cosmetic Act.

SECTION 2. 101.123 (1) (h) of the statutes is repealed and recreated to read:

101.123 (1) (h) “Smoking” means inhaling, exhaling, burning, or carrying any lighted or heated cigar, cigarette, pipe, or any other lighted or heated product containing, made, or derived from nicotine, tobacco, cannabis, hemp, or another substance, whether natural or synthetic, that is intended for inhalation. “Smoking” includes carrying or using an activated electronic delivery device.

(END)